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Case Number: 23CHCV01268 Hearing Date: July 8, 2026 Dept: F49

Dept. F49

Date: 7/8/26

Case Name: Nathan Ivan Ewing-Herrick vs. Los Angeles

Unified School Dist.; Dyer Street Elementary School; and Does 1-25

Case No. 23CHCV01268

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 8, 2026

MOTION TO COMPEL

FURTHER RESPONSES TO REQUEST FOR PRODUCTION

Los Angeles Superior

Court Case No. 23CHCV01268

Motion filed: 3/27/26

MOVING PARTY: Plaintiff Nathan Ivan Ewing-Herrick

RESPONDING PARTY: Defendant Los

Angeles Unified School District

NOTICE: OK

RELIEF REQUESTED: An order from this Court: (1) compelling Defendant Los Angeles Unified School District to provide further verified responses to Plaintiff's Requests for Production of Documents, Set Two, Nos. 79, 81-83, and 94 and to produce all documents responsive to the requests; and (2) awarding sanctions in the amount of \$3,937.50.

TENTATIVE RULING: The motion is GRANTED. The request for sanctions is DENIED.

BACKGROUND

This action arises out of a schoolyard accident in which Plaintiff Nathan Ivan Ewing-Herrick ("Plaintiff") severed a portion of his left index finger. On April 27, 2023, Plaintiff, a minor represented by and through his guardian ad litem, Tanya Renee Herrick-Ewing, initiated this action against Defendants Los Angeles Unified School District ("LAUSD"), Dyer Elementary School ("Dyer Street"), and Does 1 through 25 (collectively, "Defendants"), alleging causes of action for general negligence and premises liability. Subsequently, on September 7, 2023, Plaintiff filed the operative First Amended Complaint ("FAC").

On October 16, 2023, LAUSD and Dyer jointly filed an Answer. On June 24, 2024, at the request of Plaintiff, the Court dismissed Dyer Street from the action.

On March 27, 2026, Plaintiff filed the instant motion to compel LAUSD to further respond to Plaintiff's Requests for Production of Documents, Set Two, Nos. 79, 81-83, and 94 (the "Motion").

On June 24, 2026, LAUSD filed an Opposition.

On June 30, 2026, Plaintiff filed a Reply.

ANALYSIS

“On

receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310, subd. (a).)

A.

Procedural Requirements

(1)

Timeliness of Motion

A party must bring a motion to compel further responses to requests for production within 45 days after the responding party serves verified responses or supplemental verified responses. (Code Civ. Proc., § 2031.310, subd. (c).) Parties may also agree in writing to a specific later date by which to file a motion to compel further responses. (Ibid.) If a motion to compel further responses is not timely made, the propounding party waives any right to compel a further response. (Ibid.)

Although not “‘jurisdictional’ in the fundamental sense, [the time limit] is ... ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.)

LAUSD served verified responses to Plaintiff’s Requests for Production for Documents, Set Two on January 27, 2026 via email, and further responses on March 13, 2026. (Mot., Merzel Decl., Exhs. 2, 6.) The deadline to bring a motion to compel further responses was thus April 29, 2026. (Code Civ. Proc., §§ 1010.6, 2031.310.) The motion, filed on March 27, 2026, was accordingly timely.

(2)

Meet and Confer

A motion to compel further responses to a demand for production must be accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2031.310, subd. (b)(2).) “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040.)

Plaintiff’s counsel describes exchanging several meet and confer letters with LAUSD’s counsel concerning the responses at issue. (Merzel Decl., ¶ 4; Mot. at p. 4.) Written communication does not generally satisfy the in-person or telephonic meet and confer requirement of Code of Civil Procedure section 2016.040. However, the Court finds that the breadth of communications between counsel demonstrates an earnest effort to resolve the issues, fulfilling the purpose of the meet and confer requirement.

(3)

Separate Statement

A motion to compel further responses to a demand for production must be accompanied by a separate statement. (Cal. Rules of Court, rules 3.1345, subd. (a)(3).) “A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue.” (Id., rule 3.1345, subd. (c).)

Plaintiff has filed a Separate Statement (“Pl. SS”) concurrently with the Motion, stating both the text of the requests at issue and LAUSD’s responses, indicating why the responses are believed to be inadequate, and providing reasons why further response should be compelled. (See generally, Pl. SS.) The Court thus finds that Plaintiff has complied with the requirements of California Rules of Court, Rule 3.1345.

B.

Motion to Compel Further Responses to Requests for Production, Set One

The party to whom a demand for production has been made must respond separately to each demand by any of the

following: (1) a statement that the party will comply with the demand by the date set; (2) "[a] representation that the party lacks the ability to comply with the particular demand;" or (3) an objection to the demand. (Code Civ. Proc., § 2031.210, subd. (a).)

A statement of compliance with a particular demand must state whether compliance will be made in whole or in part, and "that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production." (Code Civ. Proc., § 2031.220.)

"A representation of inability to comply with [a] particular demand ... shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party." (Code Civ. Proc., § 2031.230.) The statement must also set forth the name and address of any person or organization known or believed to have possession, custody, or control of that item or category of item. (Ibid.)

If the responding party objects to the demand, the response must: (1) identify with particularity any document or item falling within the category of the demand to which an objection is being made; and (2) clearly set forth the extent of and specific ground for the objection. (Code Civ. Proc., § 2031.240, subd. (b).) "If an objection is based on a claim of privilege, the particular privilege invoked shall be stated." (Id., § 2031.240, subd. (b)(2).)

(1)

The Responses at Issue

Plaintiff contends that LAUSD's responses to Requests for Production of Documents, Set Two, Nos. 79, 81-83, and 94 are incomplete and accordingly noncompliant with the Discovery Act.

(a)

Request Nos. 79 and 94

Request No. 79 seeks "All DOCUMENTS

RELATING TO or CONCERNING teacher workload, staffing shortages, overwork, or insufficient supervision coverage at Dyer Street Elementary, including UTLA communications, grievances, or staff complaints." (Pl. SS, at p. 1.)

Request No. 94 seeks "All DOCUMENTS

RELATING TO or CONCERNING school overcrowding, insufficient staff, insufficient budget, insufficient training of teachers or staff, or concentration of students with behavioral concerns." (Pl. SS, at p. 21.)

LAUSD's initial and further responses to

both requests assert several objections, and the further response to both adds:

Without

waiving and subject to the aforementioned objections, and in the spirit of discovery, Responding Party responds as follows: This request is overly broad as it is not limited to a reasonable period of time. Responding Party has conducted a diligent search and reasonable inquiry in an effort to locate the items demanded for the five years prior to the incident. Responding Party is unable to comply with this request as Responding Party is not in the possession, custody or control of any documents responsive to this request. Responding Party was unable to locate any responsive documents and no such documents are believed to exist. Discovery is ongoing and continuing and Responding Party reserves the right to supplement this response.

(Pl. SS, at pp. 2-3; 21-23.)

Plaintiff contends that LAUSD's

representation that no responsive documents exist is "implausible" because it is inconsistent with public media coverage of staffing shortages within LAUSD and because schools "necessarily maintain teacher assignments and staffing supervision schedules and duty assignments; administrative communications regarding staffing and coverage; and records relating to workload, complaints, or staffing issues." (Pl. SS, at pp. 3-4.) Plaintiff further contends that LAUSD's language making its representation of inability to comply "subject to" its objections renders it unclear whether a reasonable search for responsive documents was actually conducted or whether the search included only documents deemed relevant and non-privileged. (Reply, at p. 4.)

LAUSD maintains that hearsay statements

referring to LAUSD schools generally as understaffed are irrelevant to the staffing reality at Dyer Street. (Defendant's Separate Statement ("Def. SS"), at pp. 12, 35-36.) LAUSD avers that its representation of inability to comply is a complete response because there are no responsive documents to compel. (Opp'n, at pp. 4-5.)

The Court agrees with Plaintiff that

LAUSD's response is incomplete and does not comply with the requirements of the Discovery Act. Making the response subject to LAUSD's objections, without setting forth the extent of any of the objections, (see Code Civ. Proc., § 2031.240, subd. (b)), obscures whether specific objections are being asserted, whether documents exist to which an objection applies, and whether the search conducted and inquiry made were reasonable. The response to Request Nos. 79 and 94 is accordingly insufficient.

(b)

Request Nos. 81-83

Request Nos. 81-83 seek any and all

documents related to behavioral issues among students at Dyer Street Elementary School. (Pl. SS, at pp. 12, 15, 18.) Specifically, Plaintiff requests documents concerning: "behavioral, social emotional, or disciplinary issues documented in Mr. Legaspi's classroom during the 2021–2022 school year, including records of referrals to a Psychiatric Social Worker (PSW)" (No. 81); "DOCUMENTS RELATING TO or CONCERNING all communications with parents, including Nathan's parents, regarding behavioral concerns, classroom conduct, or playground behavior, whether written, electronic, or via school platforms" (No. 82); and "DOCUMENTS RELATING TO or CONCERNING behavioral interventions, SST meetings, counseling referrals, or administrative interventions concerning PLAINTIFF or any other students in Mr. Legaspi's class" (No. 83). (Ibid.)

LAUSD's response to each of these

requests consists largely of objections on the following grounds: vagueness, ambiguity, and overbreadth; burden; attorney-client privilege, work-product protection, deliberative process privilege, and official information privilege; violation of privacy and confidentiality; and violation of the Family Educational Rights and Privacy Act ("FERPA") and the Health Insurance Portability Accountability Act ("HIPAA"). (Pl. SS, at pp. 12-13, 15-16, 18-19.) In addition to these objections, LAUSD's response to these requests indicates that it agrees to comply in part, with regard to Plaintiff only, referring

Plaintiff to documents already produced. (Ibid.)

Plaintiff contends that the production of documents relating solely to Plaintiff is an incomplete response to the inquiry. LAUSD does not dispute that its response limits production only to certain documents and does not deny that other responsive documents exist. The Court accordingly finds the foregoing response to be incomplete.

(2)

Good Cause for Further Response

In addition to identifying the insufficiency of responses to a demand for production, a motion to compel further response "shall set forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).) Good cause may be shown by a fact-specific showing of relevance. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.) Information is relevant to the subject matter if it "might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement." (Lipton v. Superior Court (1996) 48 Cal.App.4th 1599, 1611, emphasis omitted.)

Plaintiff contends that the documents sought by Request Nos. 79 and 94 relating to staffing shortages are directly relevant to Plaintiff's theories of liability. Plaintiff alleges that LAUSD employees failed to adequately supervise students and failed properly to inspect and maintain school equipment and to enforce safety rules, resulting in Plaintiff's injury. (FAC, ¶¶ 9, 11-18.) The Court agrees that evidence of staffing shortages, teacher workload, and coverage bears on whether there were adequate personnel in place to supervise the conduct of students under the circumstances leading to Plaintiff's injury. Moreover, LAUSD does not dispute the relevance of these documents. Instead, it contends that there is nothing further to compel because no responsive documents exist. (Opp'n, at p. 4-5; Def. SS, at pp. 11-13, 35-36.) The Court accordingly finds that Plaintiff has established good cause justifying further response to Request Nos. 79 and 94.

As to Request

Nos. 81-83, which request documents concerning behavioral issues among students in teacher Moises Legaspi's class, Plaintiff argues that this information relates to the supervisory capabilities of staff at the school. (Pl. SS, at pp. 14-15, 20-21, 25-26.) Plaintiff contends that the presence of behaviorally

problematic students, to which Mr. Legaspi testified at deposition, is relevant to whether the demands placed on teachers affected their ability to supervise and manage the needs of a large classroom. (Ibid.)

LAUSD argues

that documents relating to the social-emotional and behavioral issues of other students are irrelevant to the incident at issue because there are no allegations that another student caused or contributed to the incident. (Opp'n, at pp.6-7.)

While

Plaintiff does not allege that any other student contributed to his injuries, information concerning the demands placed on teachers is relevant to whether there was sufficient staff in place to supervise students. The Court agrees with Plaintiff's premise that individuals have a limited to capacity to manage others. The requirement that teachers routinely address significant behavioral issues would thus tend to show that the burden to teachers in maintaining their classrooms exceeded manageable limits. The Court finds that good cause exists to compel responses to Request Nos. 81-83.

(3)

LAUSD's Objections to the Requests

Once the moving

party establishes good cause, the burden shifts to the responding party to justify any objections or failure to provide a complete response. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221; Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 903.) Objections must be specific and substantiated, and a claim of inability to comply requires evidence of a diligent search and reasonable inquiry (Code Civ. Proc., §§ 2031.230, 2031.240; Korea Data Systems Co. v. Superior Court (1997) 51 Cal.App.4th 1513, 1518.)

As to Request Nos. 79 and 94, LAUSD

contends that it did not provide a statement of compliance because Plaintiff is seeking to compel documents that do not exist. (Opp'n, at p. 5.) While a verified representation that no documents ever existed is generally entitled to credence, given that the Court has found LAUSD's representation to be unclear in light of the conditional language of the response, further response is warranted to clarify the extent of LAUSD's objections and whether the nature of

LAUSD's search and inquiry was limited to material it deemed non-objectionable.

As to Request Nos. 81-83, LAUSD contends that blanket production of unredacted student records would compromise the privacy interests of its students. (Opp'n, at p. 6.) LAUSD argues that the names and contact information of students are protected by the right to privacy and by FERPA, and that they may not be disclosed without consent or a court order. (Id., at pp. 6-7.) In Reply, Plaintiff asserts that he does not seek personal information and is amenable to the redaction of student names and other identifying information. (Reply, at pp. 2-3.)

The California Constitution recognizes that individuals have an inalienable right to privacy. (Cal. Const., Art. 1, § 1.) That right, however, must be balanced against a litigant's broad right to discovery of non-privileged matters that are relevant to the subject matter of the litigation. (See Code Civ. Proc., § 2017.010.)

"A party asserting a privacy interest must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citation.]" (Williams v. Superior Court (2017) 3 Cal.5th 531, 552.) Once the party asserting privacy meets these threshold requirements, the Court must balance "the legitimate and countervailing interests" served by disclosure against feasible alternatives or protective measures that would serve the same interests. (Ibid.)

FERPA prohibits the disbursement of public educational funds to institutions that "permit[] the release of education records (or personally identifiable information contained therein other than directory information, ...) of students without the written consent of their parents," except under limited circumstances. (20 U.S.C. § 1232g, subd. (b)(1).) Schools may release education records without the consent of parents if the disclosure is made pursuant to a court order. (34 C.F.R. § 99.31, subd. (a)(9)(1).)

Plaintiff does not dispute that Request Nos. 81-83 implicate the privacy interests of LAUSD's students. Instead, Plaintiff argues that the privacy interests at stake are adequately protected by the redaction of students' identifying information or a protective order. (Reply, at p. 3.) LAUSD does not argue against the disclosure of redacted

records, apparently taking issue only with the production of unredacted records and with any disclosure without either consent or a court order. (Opp'n, at pp. 6-7.) Given that the information sought is relevant to the issues of notice and adequate supervision and the parties do not disagree that redaction of identifying information is both sufficient and appropriate, the Court finds that, as to Request Nos. 81-83, the interests balance in favor of discovery.

The Motion is accordingly GRANTED, with LAUSD to redact any personal identifiable information from documents produced in response to Request Nos. 81-83.

C.

Monetary Sanctions

"[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.310, subd. (h).)

Pursuant to Code of Civil Procedure

section 2023.030, the Court may impose a monetary sanction on any person, party, or attorney who engages in misuse of the discovery process. Misuses of the discovery process include: making, without substantial justification, an unmeritorious objection to discovery; and making an evasive response to discovery. (Code Civ. Proc., § 2023.010, subd. (f).)

The phrase "substantial justification"

is generally understood to mean justification that is "well-grounded in both law and fact." (Doe v. United States Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1434.)

LAUSD contends that sanctions are

unwarranted because it provided complete responses to Request Nos. 79 and 94 and was substantially justified in its objections to Request Nos. 81-83. While the Court has found that the requests seek relevant and discoverable information, LAUSD's objections to Request Nos. 81-83 are well-grounded in law and fact. FERPA does not permit LAUSD to disclose student records absent consent or a court order. Its objection to the production of student records,

redacted or otherwise, was thus made in compliance with its obligations under FERPA. The Court accordingly finds sanctions to be unwarranted.

The request for sanctions is therefore
DENIED.

CONCLUSION

The Court GRANTS Plaintiff Nathan Ivan Ewing-Herrick's motion to compel Defendant Los Angeles Unified School District's further response to Plaintiff's Request for Production of Documents, Set Two, Nos. 79, 81-83, and 94, consistent with the foregoing ruling. Defendant is ordered to serve further response to Plaintiff's Request for Production of Documents, Set Two, Nos. 79, 81-83, and 94 within 30 days.

Plaintiff's request for sanctions is DENIED.

Moving party to give notice.